

Form, contents of notice of termination

94.3 (1) A notice of termination under section 94.2 shall be in a form approved by the Board and shall,

- (a) identify the member unit for which the notice is given;
- (b) state the date on which the occupancy is to terminate; and
- (c) be signed by a director of the co-operative giving the notice, a person authorized to act for the co-operative or the co-operative's agent. 2013, c. 3, s. 31.

Same

(2) The notice shall also set out the reasons for and details respecting the termination and inform the member that,

- (a) if the member vacates the member unit in accordance with the notice, the occupancy terminates on the date set out in clause (1) (b);
- (b) if the member does not vacate the member unit, the co-operative may apply to the Board for an order terminating the occupancy of the member unit and evicting the member; and
- (c) if the co-operative applies for an order, the member is entitled to dispute the application. 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

Termination date and other requirements in notice

Persistent non-payment or ceasing to meet qualifications

94.4 (1) In a circumstance described in paragraph 1 or 2 of subsection 94.2 (1), the notice of termination shall provide a termination date not earlier than the 60th day after the notice is given and the termination date shall be on the last day of a period of occupancy. 2013, c. 3, s. 31.

Non-payment of regular monthly housing charges

(2) In a circumstance described in paragraph 3 of subsection 94.2 (1), the notice of

termination shall,

- (a) provide a termination date not earlier than the 14th day after the notice is given;
- (b) set out the amount of the regular monthly housing charges that is due; and
- (c) specify that the member may avoid the termination of the occupancy by paying, on or before the termination date specified in the notice, the amount as set out in the notice and any additional regular monthly housing charges that have become due as at the date of payment by the member. 2013, c. 3, s. 31.

Misrepresentation of income

(3) In a circumstance described in paragraph 4 of subsection 94.2 (1), the notice of termination shall provide a termination date not earlier than the 20th day after the notice is given. 2013, c. 3, s. 31.

Illegal act, etc.

(4) In a circumstance described in paragraph 5 of subsection 94.2 (1), the notice of termination shall provide a termination date not earlier than,

- (a) the 10th day after the notice is given, in the case of a notice grounded on an illegal act, trade, business or occupation involving,
 - (i) the production of an illegal drug,
 - (ii) the trafficking in an illegal drug, or
 - (iii) the possession of an illegal drug for the purposes of trafficking; or
- (b) the 20th day after the notice is given, in all other cases. 2013, c. 3, s. 31.

Damage

(5) In a circumstance described in paragraph 6 of subsection 94.2 (1), the notice of termination shall,

- (a) provide a termination date not earlier than the 20th day after the notice is given; and
- (b) require the member, within seven days,
 - (i) to repair the damaged property or pay to the co-operative the reasonable

costs of repairing the damaged property, or

(ii) to replace the damaged property or pay to the co-operative the reasonable costs of replacing the damaged property, if it is not reasonable to repair the damaged property. 2013, c. 3, s. 31.

Damage, shorter notice period

(6) Despite subsection (5), in a circumstance described in paragraph 7 of subsection 94.2 (1), the notice of termination may provide a termination date not earlier than the 10th day after the notice is given and clause (5) (b) and subsection 94.5 (3) do not apply to this notice. 2013, c. 3, s. 31.

Interfering with reasonable enjoyment

(7) A notice of termination for a circumstance described in paragraph 8 of subsection 94.2 (1) shall,

(a) provide a termination date not earlier than the 20th day after the notice is given; and

(b) require the member, within seven days, to stop the conduct or activity or correct the omission set out in the notice. 2013, c. 3, s. 31.

Impairing safety

(8) In a circumstance described in paragraph 9 of subsection 94.2 (1), the notice of termination shall provide a termination date not earlier than the 10th day after the notice is given. 2013, c. 3, s. 31.

Too many occupants

(9) In a circumstance described in paragraph 10 of subsection 94.2 (1), the notice of termination shall,

(a) provide a termination date not earlier than the 20th day after the notice is given; and

(b) require the member, within seven days, to reduce the number of persons occupying the member unit to comply with health, safety or housing standards required by law. 2013, c. 3, s. 31.

Further contravention

(10) In a circumstance described in paragraph 11 of subsection 94.2 (1), the notice of termination shall provide a termination date not earlier than the 14th day after the notice is given. 2013, c. 3, s. 31.

Definitions

(11) In subsection (4),

“illegal drug” means a controlled substance or precursor as those terms are defined in the *Controlled Drugs and Substances Act* (Canada); (“drogue illicite”)

“possession” has the same meaning as in the *Controlled Drugs and Substances Act* (Canada); (“possession”)

“production” means, with respect to an illegal drug, to produce the drug within the meaning of the *Controlled Drugs and Substances Act* (Canada); (“production”)

“trafficking” means, with respect to an illegal drug, to traffic in the drug within the meaning of the *Controlled Drugs and Substances Act* (Canada). (“trafic”) 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

Where notice void

94.5 (1) A notice of termination under subsection 94.2 (1), other than a notice of termination for a circumstance described in paragraph 3 of that subsection, becomes void 30 days after the termination date specified in the notice unless,

- (a) the member vacates the member unit before that time; or
- (b) the co-operative applies for an order terminating the occupancy of the member unit and evicting the member before that time. 2013, c. 3, s. 31.

Same, if member pays regular monthly housing charges

(2) The notice of termination for a circumstance described in paragraph 3 of subsection 94.2 (1) is void if, before the day the co-operative applies to the Board for an order terminating the occupancy of the member unit and evicting the member based on the notice, the member pays,

- (a) the regular monthly housing charges that are in arrears; and
 - (b) the additional regular monthly housing charges that would have been due as at the date of payment by the member had notice of termination not been given.
- 2013, c. 3, s. 31.

Same, if member repairs, replaces or pays for damaged property

(3) The notice of termination for a circumstance described in paragraph 6 of subsection 94.2 (1) is void if the member, within seven days after receiving the notice, complies with the requirement referred to in clause 94.4 (5) (b) or makes arrangements satisfactory to the co-operative to comply with that requirement. 2013, c. 3, s. 31.

Same, if member stops conduct, etc.

(4) The notice of termination for a circumstance described in paragraph 8 of subsection 94.2 (1) is void if the member, within seven days after receiving the notice, stops the conduct or activity or corrects the omission. 2013, c. 3, s. 31.

Same, if member reduces number of persons in member unit

(5) The notice of termination for a circumstance described in paragraph 10 of subsection 94.2 (1) is void if the member, within seven days after receiving the notice, sufficiently reduces the number of persons occupying the member unit. 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

Effect of payment

94.6 Unless a non-profit housing co-operative and member agree otherwise, the co-operative does not waive a notice of termination or reinstate a member's membership and occupancy rights by accepting arrears of the regular monthly housing charges or compensation for the use or occupation of a member unit after,

- (a) the co-operative gives a notice of termination of the occupancy under section 94.2; or
- (b) the Board makes an order terminating the member's occupancy and evicting

the member. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

APPLICATION BY CO-OPERATIVE — AFTER NOTICE OF TERMINATION

Application to Board, after notice is given to member

94.7 (1) If a non-profit housing co-operative gives a member notice of termination of occupancy of the member unit under section 94.2, the co-operative may apply to the Board for an order terminating the member's occupancy of the member unit and evicting the member. 2013, c. 3, s. 31.

Same

(2) An application under subsection (1) may not be made later than 30 days after the termination date specified in the notice, except where the application is based on a notice of termination for a circumstance described in paragraph 3 of subsection 94.2 (1). 2013, c. 3, s. 31.

No application during remedy period

(3) A co-operative may not apply to the Board for an order terminating the occupancy of a member unit and evicting the member based on a notice of termination for a circumstance described in paragraph 6, 8 or 10 of subsection 94.2 (1) before the seven-day remedy period specified in the notice expires. 2013, c. 3, s. 31.

When application can be made for non-payment of housing charges

(4) A co-operative may not apply to the Board for an order terminating an occupancy and evicting the member based on a notice of termination for a circumstance described in paragraph 3 of subsection 94.2 (1) before the day following the termination date specified in the notice. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

Immediate application

94.8 Subject to subsections 94.7 (3) and (4), a co-operative that has given a member a notice of termination under section 94.2 may apply immediately to the Board under section 94.7 for an order terminating the occupancy of the member unit and evicting the member. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

No jurisdiction re *Co-operative Corporations Act*

94.9 In an application to the Board made under section 94.7 or 94.8, the Board shall not inquire into or make any determination as to whether the member's membership and occupancy rights were properly terminated under section 171.8 of the *Co-operative Corporations Act*. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

APPLICATION BY CO-OPERATIVE — NO NOTICE OF TERMINATION

Application to Board, without notice, based on member's withdrawal, consent or notice

94.10 (1) A co-operative may, without notice to the member, apply to the Board for an order terminating the member's occupancy of a member unit and evicting the member in any of the following circumstances:

1. The member gave written notice of his or her intention to terminate his or her membership and occupancy rights under section 171.8.1 of the *Co-operative Corporations Act* and the member has not withdrawn the notice under that section.
2. The member has consented in writing to the expiry of his or her membership and occupancy rights under subsection 171.9 (1) of the *Co-operative Corporations Act*.
3. The member has not given a written notice under paragraph 1 of subsection 171.9 (3) of the *Co-operative Corporations Act* that he or she wishes to continue his or her membership and occupancy rights.
4. The member gave notice to terminate his or her membership and occupancy

rights under section 171.9.1 of the *Co-operative Corporations Act*. 2013, c. 3, s. 31.

Affidavit

- (2) The co-operative shall include with the application an affidavit verifying,
- (a) the member's notice of intention to terminate his or her membership and occupancy rights under section 171.8.1 of the *Co-operative Corporations Act* and his or her failure to withdraw the notice under that section;
 - (b) the member's consent in writing to the expiry of his or her membership and occupancy rights under subsection 171.9 (1) of the *Co-operative Corporations Act* or his or her failure to give a written notice under paragraph 1 of subsection 171.9 (3) of that Act that he or she wishes to continue his or her membership and occupancy rights; or
 - (c) the member's notice to terminate his or her membership and occupancy rights under section 171.9.1 of the *Co-operative Corporations Act*. 2013, c. 3, s. 31.

Same

- (3) An application under subsection (1) shall not be made later than 30 days after the date on which the membership and occupancy rights terminated or expired under section 171.8.1, 171.9 or 171.9.1 of the *Co-operative Corporations Act*, as the case may be. 2013, c. 3, s. 31.

Order

- (4) On receipt of the application, the Board may make an order terminating the member's occupancy of the member unit and evicting the member. 2013, c. 3, s. 31.

Same

- (5) An order under subsection (4) is not effective before the later of,
- (a) the date on which the co-operative applied to the Board under subsection (1); and
 - (b) the date on which the membership and occupancy rights terminated or expired under section 171.8.1, 171.9 or 171.9.1 of the *Co-operative Corporations Act*, as the case may be. 2013, c. 3, s. 31.

Motion to set aside order

(6) The member may make a motion to the Board, on notice to the co-operative, to have the order under subsection (4) set aside within 10 days after the order is issued. 2013, c. 3, s. 31.

Motion stays order

(7) An order under subsection (4) is stayed when a motion to have the order set aside is received by the Board and shall not be enforced under this Act or as an order of the Superior Court of Justice during the stay. 2013, c. 3, s. 31.

Order of Board

(8) If the member makes a motion under subsection (6), the Board shall, after a hearing,

(a) make an order setting aside the order under subsection (4), if,

(i) the member did not give written notice of his or her intention to terminate his or her membership and occupancy rights under section 171.8.1 of the *Co-operative Corporations Act* or the member withdrew the notice of intention to terminate with the consent of the board of directors,

(ii) the member did not consent in writing to the expiry of his or her membership and occupancy rights under subsection 171.9 (1) of the *Co-operative Corporations Act*,

(iii) the member gave a written notice under subsection 171.9 (3) of the *Co-operative Corporations Act* that he or she wishes to continue his or her membership and occupancy rights, or

(iv) the member did not give notice to terminate his or her membership and occupancy rights under section 171.9.1 of the *Co-operative Corporations Act*;

(b) make an order setting aside the order under subsection (4), if the Board is satisfied, having regard to all the circumstances, that it would not be unfair to do so; or

Note: On a day to be named by order of the Lieutenant Governor in Council, clause 94.10 (8) (b) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 9)

(b) make an order setting aside the order under subsection (4), if the prescribed circumstances, conditions or tests have been satisfied; or

(c) make an order lifting the stay of the order under subsection (4), effective immediately or on a future date specified in the order. 2013, c. 3, s. 31.

▼ **Section Amendments with date in force (d/m/y)**

Application to Board, without notice, based on previous order, mediated settlement

94.11 (1) A non-profit housing co-operative may, without notice to the member, apply to the Board for an order terminating a member's occupancy of a member unit and evicting the member if the following criteria are satisfied:

1. The co-operative previously applied to the Board for an order terminating the member's occupancy of the member unit and evicting the member.
2. A settlement agreed to under section 194 or an order made with respect to the previous application,
 - i. imposed conditions on the member that, if not met by the member, would give rise to the same grounds for terminating the member's occupancy of the member unit as were claimed in the previous application, and
 - ii. provided that the co-operative could apply under this section if the member did not meet one or more of the conditions described in subparagraph i.
3. The member has not met one or more of the conditions described in subparagraph 2 i. 2013, c. 3, s. 31; 2020, c. 16, Sched. 4, s. 22.

Deemed termination of membership and occupancy rights

(2) Despite subsections 171.8 (1) and 171.12.1 (2) of the *Co-operative Corporations Act*, where the criteria described in subsection (1) are satisfied, the member's membership and occupancy rights under that Act are deemed to have been terminated for the purpose of this section. 2013, c. 3, s. 31.

Application of s. 78 (2) to (12)